

4.

CASE #	CASE NAME	HEARING NAME
CVRI2600295	GONSAL VS WEIDNER PROPERTY MANAGEMENT LLC, A WASHINGTON LIMITED LIABILITY COMPANY	DEMURRER MOTION TO STRIKE

Tentative Ruling:

On August 24, 2026, the court continued the hearing and ordered the parties to meet and confer. The Court also ordered Defendants to file a meet and confer declaration 10 days before the hearing date, or by August 31, 2026 (or vacate the hearing on the demurrer and motion to strike). As of September 3, 2026, there is no joint declaration filed.

The court: (1) denies Defendants' requests for judicial notice in full, (2) overrules Defendants' demurrer, (3) denies Defendants' motion to strike, and (4) orders Defendants to file an Answer within 10 days of this ruling.

Additionally, the court sets an OSC re: sanctions not to exceed \$1,500 on Defendants' counsel Stephen B. Heath for failure to comply with the court's order to file a timely meet and confer declaration pursuant to the court's August 24, 2026 order. This OSC is set for September 30, 2026, at 8:30 a.m.

Moving party is ordered to give notice.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2600449	ALCARZAR VS SAN JACINTO UNIFIED SCHOOL DISTRICT	DEMURRER

Tentative Ruling:

The meet-and-confer requirement has been met. The parties were unable to reach an agreement to resolve the demurrer, but District withdrew its motion to strike.

1st Cause of Action: Failure to Perform Mandatory Duty to Protect

The FAC alleges District is liable for Plaintiff's injuries under three theories: (1) direct liability for breach of a mandatory duty under Government Code section 815.6; (2) vicarious liability for the acts or omissions of its employees under Government Code section 815.2; and (3) negligent supervision based on a special relationship with Plaintiff. District argues Plaintiff fails to plead any of these theories of liability.